

Reply To Examination Report

(By: Alshan Husain Shah)

BEFORE THE REGISTRAR OF TRADEMARKS

(Trade Marks Registry, New Delhi, India)

In the matter of: Application for registration of the trade mark “FERMORA” in class 5
(Pharmaceutical Products)

Application No. 123 of 2025

Applicant: Mr. XYZ

Hon’ble Sir,

It is most respectfully submitted that this reply is in reference to the Examination Report dated: 03.10.2025, wherein objections have been raised under section 9(1)(a) and section 11(1) of The Trade Marks Act, 1999. The following submissions are being made for your kind consideration:

Objection under section 9(1)(a):

1. It is humbly submitted that the said mark “FERMORA” is an invented word by the applicant, which has no literal meaning or definition in English, Hindi or any other Indian regional language. As it is a coined and invented expression, it is inherently distinctive and is capable of recognizing the applicant’s good as different from any other mark or product.
2. Without prejudice, the applicant has been using the said mark comprehensively for the purpose of manufacturing pharmaceutical products since 2020. Through continuous use, sales and promotional efforts, the mark has acquired a very strong reputation and is now well recognised among consumers and medical professionals.

Accordingly, the objection under Section 9(1)(a) is unfounded.

Objection under section 11(1):

Difference between the cited mark “DERMORA” and applicant’s mark “FERMORA”

1. The first three letters are different “DER” and “FER”. It is a well-established fact that the opening syllable marks a lasting impression on the subconscious mind of the consumer, making them aware about the product and its unique properties.
2. The prefix “DERM” is linked and associated with a skin care product concerning the dermatology category. “FERMORA” on the other hand has no such meaning or use as a dermatology product. It is a mark used by the applicant for the purpose of manufacturing medicinal tablets intended for the treatment of common cold and flu.
3. When considered as a whole, the average consumer is highly unlikely to be confused between these two marks, as they relate to products with distinctly different characteristics and uses.

Thus, there exists no likelihood of confusion and the objection under section 11(1) is untenable.

Case Laws:

1. ***Godfrey Phillips India Ltd. v. Girnar Food & Beverages (P) Ltd., (2004) 5 SCC 257.*** The Hon'ble Supreme Court of India held that even descriptive marks can acquire distinctiveness by use and invented marks on the other hand enjoy strong protection.
2. ***Muneer Ahmad v. Registrar of Trade Marks (2023) Delhi High Court.*** The court found that the device mark, when viewed as a whole, was distinctive and not lacking in distinctiveness. It held that the mark could not be refused registration under Section 9(1)(a) of the Trade Marks Act.

Evidence of Use:

Yes, for abundant caution, the applicant should file an *Affidavit of Use and Distinctiveness*, supported by documentary evidence such as sales, advertisements, promotional materials etc.

This will further establish the distinctiveness acquired by the mark.

Prayer:

In light of the above submissions, it is most humbly prayed that the objections raised under sections 9(1)(a) and 11(1) be set aside and that the mark “**FERMORA**” be allowed to proceed for the registration as per the provisions of The Trade Marks Act, 1999.

Respectfully submitted,

For the Applicant,

AAR Attorney Alliance Advocates LLP

Dated: 03.10.2025